

Articles 214-237 | constitutional court, writs, supervision, district justice

12-stage synchronized master | core complete before optional enrichment

1 CONSTITUTIONAL LOCATION AND ORIGIN

- 1 1861 High Courts Act; Calcutta, Bombay and Madras opened in 1862; Allahabad in 1866.
- 2 Articles 214-231 create and protect High Courts; Articles 233-237 protect subordinate courts.
- 3 Integrated hierarchy: Supreme Court -> High Court -> district and subordinate courts.
- 4 Core line: territorial constitutional adjudication with national doctrinal unity.



2 ESTABLISHMENT, COMPOSITION AND COMMON COURTS

1. Article 214: High Court for each State; Article 216: Chief Justice plus other judges.
2. Article 231: Parliament may establish a common High Court for States and/or Union Territories.
3. Seventh Amendment, 1956 reorganised the common-court provisions; Article 232 stands repealed.
4. Dated control: 25 High Courts on 7 September 2026; no one-State-one-court inference.



3 APPOINTMENTS AND COLLEGIUM

- Article 217: President appoints after consultation with CJI and Governor; HC Chief Justice also for puisne judges.
- Second Judges Case (1993): judicial primacy; Third Judges Reference (1998): plural consultation.
- HC initiation: Chief Justice plus two senior colleagues; SC stage: CJI plus two senior-most judges.
- 99th Amendment/NJAC Act invalidated in 2015; collegium remains operative, not textually named.



4 QUALIFICATIONS, TENURE AND INDEPENDENCE

- RULE 1

Article 217(2): citizen plus 10 years judicial office OR 10 years High Court advocacy.
- RULE 2

Articles 218-221: oath before Governor/appointment retirement (20); restricted later practices; protected conditions

HC initiation: Chief Justice plus two senior colleagues; SC stage: CJI plus two senior-most judges.

99th Amendment/NJAC Act invalidated in 2015; collegium remains operative, not textually named.



4

QUALIFICATIONS, TENURE AND INDEPENDENCE

RULE 1

Article 217(2): citizen plus 10 years judicial office OR 10 years High Court advocacy.

RULE 2

Articles 219-221: oath before Governor/appointee; retirement 62; restricted later practice; protected conditions.

RULE 3

Article 218 applies Article 124(4)-(5) removal: proved misbehaviour/incapacity and parliamentary special majority.

RULE 4

Article 229(3) charges High Court expenses on the State Consolidated Fund; Article 360 is the salary exception.



5

TRANSFER AND TEMPORARY JUDGES

1

Article 222: President transfers after CJI consultation; consent not an express constitutional condition.

2

Sankalchand Sheth (1977) and Third Judges Reference require public-interest institutional safeguards.

3

Article 223 Acting CJ; Article 224 additional judge up to two years or acting judge for absence.

4

Article 224A: retired HC judge sits on CJ request, prior presidential consent and retiree consent.



6

RECORD, JURISDICTION AND SOURCE FIREWALL

1.

Article 215: court of record plus constitutional contempt power; 1971 Act regulates it.

2.

Article 225 preserves existing jurisdiction subject to Constitution and competent legislation.

3.

Original civil, appellate, election, admiralty and commercial powers are charter/statute-specific.

4.

Never universalise one High Court's original jurisdiction, bench arrangement or pecuniary rule.



7

ARTICLE 226 WRIT JURISDICTION

Article 226 covers Fundamental Rights and any other legal purpose; Article 32 is a Fundamental Right for FR enforcement.

3. Original civil, appellate, election, admiralty and commercial powers are charter/statute-specific.

4. Never universalise one High Court's original jurisdiction, bench arrangement or pecuniary rule.



7 ARTICLE 226 WRIT JURISDICTION

- Article 226 covers Fundamental Rights and any other legal purpose; Article 32 is a Fundamental Right for FR enforcement.
- Article 226(2): material cause of action wholly or partly in territory; residence alone is insufficient.
- Whirlpool (1998)/Radha Krishan (2021): alternative remedy is restraint, not jurisdictional extinction.
- Five writs: habeas corpus, mandamus, prohibition, certiorari and quo warranto; PIL relaxes standing.



8 REVIEW, TRIBUNALS AND SUPERVISION

- RULE 1** L. Chandra Kumar (1997): Articles 226/227 review is Basic Structure; tribunals supplement courts.
- RULE 2** Madras Bar Association cases: tribunal independence, tenure and selection must meet judicial standards.
- RULE 3** Article 227: judicial/administrative superintendence, no routine appeal; Armed-Forces-law exception.
- RULE 4** Article 228: withdraw substantial constitutional question; decide case or return after ruling.



9 ADMINISTRATION, TERRITORY AND BENCHES

- Article 229: Chief Justice controls staff; bounded Governor role; expenses charged.
- Article 230: Parliament extends/excludes High Court jurisdiction to/from a Union Territory.
- Article 231 common High Court; Article 241 separate UT court route.
- Principal seat, permanent bench and circuit sitting depend on specific statutes/orders and are not synonyms.



10 SUBORDINATE JUDICIARY: ARTICLES 233-237

- Article 233: Governor plus High Court consultation; direct route has seven-year advocacy and recommendation.
- Article 233A: Twentieth Amendment, 1966 validation of specified past appointments and judgments.

3 Article 231 common High Court; Article 241 separate UT court route.

4 Principal seat, permanent bench and circuit sitting depend on specific statutes/orders and are not synonyms.



10 SUBORDINATE JUDICIARY: ARTICLES 233-237

1. Article 233: Governor plus High Court consultation; direct route has seven-year advocacy and recommendation.

2. Article 233A: Twentieth Amendment, 1966 validation of specified past appointments and judgments.

3. Article 234: Governor rules after SPSC and High Court consultation; Article 235: High Court career control.

4. Articles 236-237 define judicial service and permit notified application to classes of magistrates; Article 50 separates.



11 RECRUITMENT, ACCESS AND SPECIALISED COURTS

● Chandra Mohan (1966): executive officers cannot bypass the judicial-service scheme.

● Ranga Muhammad (1967): transfer of serving district judges lies within Article 235 control.

● AIJA series, Malik Mazhar Sultan and 2025 rulings address conditions, calendars, practice and promotion.

● NALSA/Lok Adalat, Gram Nyayalaya, Family and Commercial Courts remain statute-bound institutions.



12 REFORM, TRAPS AND ANSWER SPINE

RULE 1 Article 312 can create AIJS only after Rajya Sabha resolution and law; Article 312(3) excludes posts below district judge.

RULE 2 e-Courts Phase III: 2023-2027, Rs 7,210 crore; NJDG is dated administrative evidence, not adjudication.

RULE 3 High Court Bar Association Allahabad (2024): no automatic six-month vacation of all interim stays.

RULE 4 Answer spine: source -> mechanism -> named authority -> consequence -> limitation -> targeted reform.